

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #16	CCRB Case #: 201604373	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/03/2016 9:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/3/2017	Precinct: 42		
Date/Time CV Reported Thu, 05/19/2016 8:00 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 05/19/2016 8:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Lewellyn Alvarez	20035	949996	042 PCT
2. POM Gilberto Rodriguez	31673	953331	042 PCT
3. DTS Robert Welsome	01419	919858	ESS 04
4. DTS Dennis O'Sullivan	4269	939133	ESS 04

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Robert Dipaola	06532	899150	042 PCT
2. SGT Saul Jeune	768	936817	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Lewellyn Alvarez	Abuse: Police Officer Lewellyn Alvarez entered and searched § 87(2)(b) in the Bronx.	A . Exonerated
B . POM Gilberto Rodriguez	Abuse: Police Officer Gilberto Rodriguez entered and searched § 87(2)(b) in the Bronx.	B . Exonerated
C . POM Lewellyn Alvarez	Force: Police Officer Lewellyn Alvarez used physical force against § 87(2)(b)	C . Unfounded
D . POM Gilberto Rodriguez	Force: Police Officer Gilberto Rodriguez used a chokehold against § 87(2)(b)	D . Unfounded
E . POM Lewellyn Alvarez	Discourtesy: Police Officer Lewellyn Alvarez spoke discourteously to § 87(2)(b)	E . Substantiated
F . POM Lewellyn Alvarez	Abuse: Police Officer Lewellyn Alvarez threatened § 87(2)(b) with the use of force.	F . Substantiated

Officer(s)	Allegation	Investigator Recommendation
G . DTS Robert Welsome	Force: Detective Robert Welsome used physical force against § 87(2)(b)	G . Exonerated
H . DTS Dennis O'Sullivan	Force: Detective Dennis O'Sullivan used physical force against § 87(2)(b)	H . Exonerated

Case Summary

On May 19, 2016, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On May 3, 2016, § 87(2)(b) was staying at a homeless shelter § 87(2)(b) in the Bronx. She was staying in § 87(2)(b) with her son, § 87(2)(b). § 87(2)(b) had been born about a week earlier. Since § 87(2)(b) had delivered § 87(2)(b) via C-section, she had a scar running across her abdomen. Nobody else was in her hotel room.

At approximately 9:00 p.m., two Administration for Children's Services (ACS) employees, § 87(2)(b) and § 87(2)(b) traveled to the hotel to effect an emergency removal of § 87(2)(b) from § 87(2)(b) care. When they arrived, they requested assistance from the Police Department to effect the removal. PO Lewellyn Alvarez and PO Gilberto Rodriguez from the 42nd Precinct responded to the location. The officers escorted § 87(2)(b) and § 87(2)(b) along with two employees from the shelter, § 87(2)(b) and § 87(2)(b) up to § 87(2)(b). The officers knocked on the door, but § 87(2)(b) did not answer. § 87(2)(b) then used his key card to open the door and admit the two officers (**Allegations A and B**). At the time, § 87(2)(b) was standing by her bed, holding § 87(2)(b) § 87(2)(b) in her left arm.

Immediately upon entering the room, PO Alvarez and PO Rodriguez grabbed § 87(2)(b). PO Alvarez pulled her right arm behind her back and pushed her down onto her bed. He held her down on her left side, where she was holding § 87(2)(b) § 87(2)(b) (**Allegation C**). PO Rodriguez placed his right forearm over § 87(2)(b) neck (**Allegation D**). This action did not restrict § 87(2)(b) breathing in any way. § 87(2)(b) § 87(2)(b) was positioned underneath her body at the time. After an unknown amount of the time, the two officers released her from their grip. The two officers then began to search § 87(2)(b) hotel room. When § 87(2)(b) asked PO Alvarez why he was searching the room, he replied, "You don't have shit" (**Allegation E**). He also told her, "If you didn't have the baby in your arms, I would have knocked your teeth out" (**Allegation F**).

Afterwards, several additional individuals arrived at the location. Four additional officers arrived: a patrol supervisor, Sgt. Saul Jeune; his operator, Det. Robert DiPaola; and two ESU officers, Det. Robert Welsome and Det. Dennis O'Sullivan. Several EMTs arrived, including EMT § 87(2)(b) and EMT § 87(2)(b) § 87(2)(b) mother, § 87(2)(b) and her sister, § 87(2)(b) also arrived. § 87(2)(b) was accompanied by § 87(2)(b) oldest child, § 87(2)(b)-year-old § 87(2)(b). These individuals took turns attempting to calm § 87(2)(b) down. Eventually, she agreed to hand § 87(2)(b) § 87(2)(b) over to § 87(2)(b). After he was handed over, Det. Welsome and Det. O'Sullivan pushed § 87(2)(b) face-first against a wall and bent her arms behind her back (**Allegations G and H**). § 87(2)(b) was then handcuffed and attached to an EMS "stair chair," used to transport individuals out of apartments. She was also sedated by EMS. § 87(2)(b) and § 87(2)(b) § 87(2)(b) were removed to a hospital for evaluation. Both were released the next day, though § 87(2)(b) § 87(2)(b) was initially held in ACS custody. § 87(2)(b) was not arrested or issued a summons.

Video footage was recovered from the hotel's security cameras showing the hotel lobby and the hallway outside of § 87(2)(b) room. They have been attached in IAs #75-77 (See Board Review #1: Video Footage). The officers' interactions with § 87(2)(b) were not recorded on the video, but the officers' entry is partially seen. This portion of the video has been attached below (See Board Review #2: Video Capture).



201604373_20161012_1521_DM.mp4

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b) stated intention to file a lawsuit.
- § 87(2)(b) filed a notice of claim with the Comptroller's office on § 87(2)(b). In it, she alleged physical injury, false arrest and imprisonment, and civil rights violations. She sought unspecified damages (See Board Review #3: Notice of Claim). No 50-H hearing has been held in regards to the above notice.
- § 87(2)(b) was not arrested or issued a summons in regards to this incident.
- § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in one previous CCRB complaint. § 87(2)(b)

- PO Alvarez has been a member of the service for five years and there are no substantiated CCRB allegations against him. The only previous allegation made against him was for physical force. It was closed as complainant uncooperative.
- PO Rodriguez has been a member of the service for four years and there are no substantiated CCRB allegations against him. He has been the subject of eight previous allegations in five complaints. This is the first chokehold allegation made against PO Rodriguez. One other premises entered/searched allegation was closed against him as complainant uncooperative.
- Det. Welsome has been a member of the service for nineteen years and there are no substantiated CCRB allegations against him. He has been the subject of six previous allegations in two complaints. Two previous physical force allegations against him were closed as exonerated.
- Det. O'Sullivan has been a member of the service for eleven years and there are no substantiated CCRB allegations against him. He has been the subject of five previous allegations in four cases. Two previous force allegations against him were closed as unsubstantiated and unfounded.

Findings and Recommendations

Identification of Subject Officers

- § 87(2)(b) alleged that after § 87(2)(b) § 87(2)(b) was taken from her custody, several ESU officers entered her hotel room. One of these officers, described only as a tall white male, pushed her against a wall and placed her in handcuffs. § 87(2)(b) alleged that three officers restrained § 87(2)(b). She described them as two tall white males and a young black Hispanic male. EMT § 87(2)(b) stated that the two ESU officers alone dealt with § 87(2)(b). § 87(2)(b) stated that a black male officer and a female officer of an unknown race restrained her.

The remaining civilians could not see inside of the hotel room when § 87(2)(b) was present, but were able to identify the officers who were inside at the time. § 87(2)(b) and EMT § 87(2)(b) indicated that the ESU officers were the only people in the room with § 87(2)(b) when she was restrained. § 87(2)(b) stated that several officers were inside, including PO Alvarez and PO Rodriguez. § 87(2)(b) stated that all of the officers except the ESU officers were in the hotel room at the time.

Det. Welsome and Det. O'Sullivan both stated that they were the only ESU officers present at the location. Both also stated that they assisted in restraining and handcuffing § 87(2)(b). No other officers assisted them. Both officers are white males over 5'11" in height.

Sgt. Jeune stated that he was in the room with the two ESU officers when they restrained § 87(2)(b) but denied assisting them in any way. PO Alvarez and PO Rodriguez did not observe § 87(2)(b) being observed, but stated that Det. Welsome and Det. O'Sullivan were the only officers in the room. Det. DiPaola stated that one other officer might have accompanied the two ESU officers into the hotel room, but did not recall who it was. He denied doing so himself.

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]

Allegations Not Pleaded

- § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
- § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
- § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Allegation A -Force: Police Officer Lewellyn Alvarez entered and searched § 87(2)(b) [Redacted], in the Bronx.

Allegation B -Force: Police Officer Gilberto Rodriguez entered and searched § 87(2)(b) [Redacted], in the Bronx.

§ 87(2)(g) [Redacted]
[Redacted]

It is undisputed that § 87(2)(b) [Redacted] did not open her door for PO Alvarez or PO Rodriguez, or give them consent to enter. The officers were admitted to the room by § 87(2)(b) [Redacted] who opened § 87(2)(b) [Redacted] door. The security camera footage in the hallway (attached above) confirms that § 87(2)(b) [Redacted] used a keycard to open § 87(2)(b) [Redacted] door for the officers.

§ 87(2)(b) [Redacted] was interviewed at the CCRB on May 24, 2016 (See Board Review #6: § 87(2)(b) [Redacted] Statement). She alleged that after PO Alvarez and PO Rodriguez entered her room, they searched the interior. PO Rodriguez searched the trash can in the bathroom, while PO Alvarez opened several dresser drawers in the bedroom.

§ 87(2)(b) provided a telephone statement on July 5, 2016. § 87(2)(b) provided a telephone statement on July 25, 2016, and signed a verification form on October 17, 2016. (See Board Review #7-8: § 87(2)(b) s and § 87(2)(b) s Statements and Board Review #9: § 87(2)(b) s Verification Form). § 87(2)(b) stated that he has free access to the residents' rooms, and that he used this authority to admit the officers into § 87(2)(b) room. § 87(2)(b) further stated that residents at the shelter do not have independent access to their rooms, and must be admitted to their rooms by the staff. Residents are informed of this policy during the intake process. § 87(2)(b) denied seeing either officer search any areas of § 87(2)(b) room. While § 87(2)(b) denied that PO Alvarez searched through § 87(2)(b) dresser, he alleged that PO Rodriguez searched through the trash can in § 87(2)(b) bathroom.

§ 87(2)(b) was interviewed at the CCRB on June 13, 2016, while § 87(2)(b) was interviewed at the CCRB on July 19, 2016 (See Board Review #10-11: ACS Statements). Both ACS workers denied seeing either officer search any part of § 87(2)(b) room, including the bathroom or the dresser.

PO Alvarez and PO Rodriguez were interviewed at the CCRB on August 4, 2016 (See Board Review #12-13: MOS Statements). Both officers confirmed that they were admitted to § 87(2)(b) room by § 87(2)(b). Both denied that they conducted any searches inside of § 87(2)(b) apartment, either in the bathroom or in the bedroom.

To invoke the protection of the Fourth Amendment, a defendant must exhibit an actual expectation of privacy which society is prepared to recognize as reasonable. This expectation does not apply to homeless shelters and other semi-public spaces. Access to these spaces is governed by the staff that operates them, rather than the residents. People v. Robinson, 300 A.D.2d 511 (App. Term, 2nd Dept, 2003) (See Board Review #14: Legal Reference).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C -Force: Police Officer Lewellyn Alvarez used physical force against § 87(2)(b)

Allegation D -Force: Police Officer Gilberto Rodriguez used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that immediately after the officers entered her room, PO Alvarez and PO Rodriguez pushed her down onto her bed. She was holding § 87(2)(b) § 87(2)(b) at the time. § 87(2)(b) body was pressed between § 87(2)(b) and the bed. The officers did not speak to § 87(2)(b) at that time. PO Alvarez bent § 87(2)(b) right arm behind her back, while PO Rodriguez placed his right forearm over § 87(2)(b) neck. This action did not obstruct § 87(2)(b) breathing in any way. § 87(2)(b) made no movements at that time, fearing that any motion might harm § 87(2)(b) § 87(2)(b). The officers held § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as **unfounded**.

Allegation E -Discourtesy: Police Officer Lewellyn Alvarez spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after PO Alvarez searched through her dresser, he told her, “You don’t have shit.” § 87(2)(b) denied hearing any officer use profanity towards § 87(2)(b) and § 87(2)(b) were not asked if the officers used profanity. § 87(2)(b) however, alleged that right before PO Rodriguez went into the bathroom, PO Alvarez told § 87(2)(b) “You don’t have shit.” As mentioned earlier, § 87(2)(b) provided a telephone statement and signed a verification form (See Board Review # 8: § 87(2)(b) s Telephone Statement and Board Review #9: § 87(2)(b) s Verification Form). PO Alvarez denied that he made this statement or used profanity towards § 87(2)(b) All of the officers denied hearing any other officer use profanity during the incident.

According to NYPD Patrol Guide procedure 203-09, officers are to be courteous and respectful when dealing with the public. The courts have held that the limited use of profanity, when used to maintain order in a stressful street encounter, does not constitute misconduct. NYPD v. White, OATH Index 78667/03 (See Board Review #17-18: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

Allegation F –Abuse of Authority: Police Officer Lewellyn Alvarez threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that after PO Alvarez and PO Rodriguez released her from the bed, she argued with PO Alvarez for several minutes over whether she was taking proper care of § 87(2)(b). PO Alvarez then told her, “If you didn’t have the baby in your arms, I would have knocked your teeth out.” § 87(2)(b) was not aware of any EMS personnel being present at the location at the time of PO Alvarez’s threat. She did not notice any EMS personnel until after she was handcuffed and removed from her bedroom.

According to § 87(2)(b) statement, § 87(2)(b) was not present at the time of the alleged threat. § 87(2)(b) initially made no mention of any officer threatening to use force against § 87(2)(b). When specifically asked if an officer threatened § 87(2)(b) however, § 87(2)(b) initially stated that one of the officers threatened to “knock in” § 87(2)(b) teeth at some point during the incident. She then stated instead that several officers had threatened to use force against § 87(2)(b) but that she did not recall the specific statements the officers made. Even later, she stated that PO Alvarez stated that he would “knock [her] teeth in” when he saw § 87(2)(b) recording him with a cell phone.

EMT § 87(2)(b) and EMT § 87(2)(b) were interviewed at the CCRB on July 12, 2016 (See Board Review #19-20: EMT Statements). § 87(2)(b) EMT § 87(2)(b) and EMT § 87(2)(b) denied hearing any officer tell § 87(2)(b) that he would knock her teeth out. They denied hearing any officer threaten to use any force against § 87(2)(b) however, § 87(2)(b) alleged that after EMT § 87(2)(b) and EMT § 87(2)(b) arrived at the location, PO Alvarez told § 87(2)(b) “If you didn’t have the baby in your arms, I’d knock your teeth out.” He then approached one of the EMTs in the hallway outside of the hotel room and repeated the remark to her. All of the civilian witnesses, including § 87(2)(b) stated that § 87(2)(b) was shouting at and insulting the officers at the time.

PO Alvarez denied threatening to use any kind of force against § 87(2)(b). All of the other officers denied hearing any threats made against § 87(2)(b). The officers also stated that § 87(2)(b) was shouting and insulting the police throughout the encounter.

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Allegation G -Force: Detective Robert Welsome used physical force against § 87(2)(b)

Allegation H -Force: Detective Dennis O’Sullivan used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after § 87(2)(b) arrived at the hotel, she agreed to hand § 87(2)(b) over to her. Before she could do so, an unidentified officer pulled § 87(2)(b) from her hands. She did not state whether she took any action to prevent the officer from taking § 87(2)(b). The precinct officers then left the hotel room, leaving her with the ESU officers. The officers lifted § 87(2)(b) to her feet and pushed her face-first against a wall. This action caused her to experience pain in her neck and jaw after the incident. The officers then pulled her arms behind her back and placed her in handcuffs. § 87(2)(b) was then walked into the hallway where she was seated in a stair chair. No force was used to place her in the chair. § 87(2)(b) denied offering any kind of resistance or making any movements when the officers restrained her.

§ 87(2)(b) alleged that before § 87(2)(b) was removed from § 87(2)(b) custody, Det. Welsome and Det. O’Sullivan pushed § 87(2)(b) to the bed and held her arms behind her back. One of the officers held her down, while the other tried unsuccessfully to pull § 87(2)(b) from § 87(2)(b) arms. Initially, § 87(2)(b) stated that the officers then pulled § 87(2)(b) to her feet and pushed her back against a wall. § 87(2)(b) handed § 87(2)(b) to § 87(2)(b) while against the wall. Later, § 87(2)(b) stated that an EMT pulled § 87(2)(b) from § 87(2)(b) arms after she was pulled to her feet, but before she was pushed against the wall. Det. Welsome and Det. O’Sullivan then pushed § 87(2)(b) face-first against a wall, holding her there briefly before pushing her face-down onto the ground. The officers then placed her in handcuffs. An EMT sedated § 87(2)(b) while she was on the ground. § 87(2)(b) was then lifted up and placed in the stair chair. § 87(2)(b) denied that § 87(2)(b) gave any kind of resistance. She did not observe any injuries to § 87(2)(b) at the time of the struggle. Later at the hospital, she observed that § 87(2)(b) was bleeding from her mouth or nose. She made no mention of any injuries to § 87(2)(b) abdomen, including any involving a C-section scar.

§ 87(2)(b) and § 87(2)(b) both stated that they were standing in the hallway while the ESU officers were in the hotel room with § 87(2)(b). Neither ACS worker saw into the room at the time. § 87(2)(b) further stated that her view of the room was obstructed when the hotel room door was closed by the ESU officers. Neither saw either how § 87(2)(b) was removed from § 87(2)(b) arms, or what, if any, force was used to restrain her. Neither observed any injuries to § 87(2)(b) during the incident.

§ 87(2)(b) stated that after Det. Welsome and Det. O’Sullivan entered the hotel room, § 87(2)(b) handed § 87(2)(b) over to § 87(2)(b). § 87(2)(b) had only a partial view of the bedroom, and could not fully see what happened inside. He observed Det. Welsome and

Det. O'Sullivan push § 87(2)(b) face-down onto the bed. There, she was placed in handcuffs. He did not see if she was pushed against a wall.

§ 87(2)(b) stated that § 87(2)(b) initially refused several requests for the gathered officers to hand § 87(2)(b) § 87(2)(b) over to her mother. After several minutes, the ESU officers shut themselves into the hotel room with § 87(2)(b) § 87(2)(b) was not with them at the time. § 87(2)(b) did not see what happened inside of the bedroom, but heard § 87(2)(b) state that the staples in her abdomen resulting from her C-section had popped out. After about three minutes, the officers opened the hotel room door, revealing that § 87(2)(b) had been restrained in the stair chair. § 87(2)(b) did not see any officers use force against § 87(2)(b) at any time while the hotel room door was open. He did not observe any injuries to § 87(2)(b) including any bleeding from her abdomen.

EMT § 87(2)(b) and EMT § 87(2)(b) stated that after the ESU officers arrived, they convinced § 87(2)(b) to hand the child over to § 87(2)(b). The ESU officers then grasped § 87(2)(b) by her arms and maneuvered her into the stair chair. § 87(2)(b) attempted to resist them by pulling her arms away. EMT § 87(2)(b) did not recall how the officers overcame § 87(2)(b) resistance. EMT § 87(2)(b) stated that the officers were able to keep their grips on her arms. Both EMTs denied that the officers struck § 87(2)(b) or pushed her against either a bed or a wall. Her arms were not pulled behind her back or placed in handcuffs. They did not observe any injuries to § 87(2)(b). They were not aware of any scars on her stomach from a C-section, or any bleeding from § 87(2)(b) abdomen.

Det. Welsome and Det. O'Sullivan were interviewed at the CCRB on September 15, 2016 (See Board Review #21-22: MOS Statements). Both stated that while they spoke to § 87(2)(b) for several minutes in an effort to get her to hand § 87(2)(b) § 87(2)(b) over to § 87(2)(b). They intentionally misled § 87(2)(b) into believing that she would be allowed to go into the hallway to speak to § 87(2)(b) and § 87(2)(b) if she handed the child over. § 87(2)(b) agreed to do so, and gave § 87(2)(b) § 87(2)(b) to her mother. When she moved to exit the room, however, Det. O'Sullivan closed the door to separate § 87(2)(b) from the ACS employees. The two officers then moved to restrain § 87(2)(b) in order to facilitate her removal from the hotel room as an emotionally disturbed person. Det. Welsome and Det. O'Sullivan then grabbed § 87(2)(b) arms and pulled them behind her back. She was then handcuffed. The officers did not engage in any prolonged struggle with § 87(2)(b) and used no force beyond pulling her arms back. Both officers denied that they struck § 87(2)(b). They denied that they pushed or held § 87(2)(b) against the bed or a wall.

PO Alvarez and PO Rodriguez both denied being in the room. They stated that they were standing in the hallway at the time, and that the hotel room door was closed while Det. Welsome and Det. O'Sullivan restrained § 87(2)(b). As a result, they were unaware of what, if any, force was used to restrain her. Both denied that § 87(2)(b) sustained any injuries during the incident.

Sgt. Jeune was interviewed at the CCRB on August 16, 2016 (See Board Review #23: Sgt. Jeune's Statement). He stated that § 87(2)(b) was removed from the room as an EDP after she handed over § 87(2)(b) § 87(2)(b) to § 87(2)(b). Sgt. Jeune placed himself in the hotel room

at the time of the allegations. He did not recall what, if any force was used against § 87(2)(b) and did not recall if she was restrained either by handcuffs or by an EMS stair chair. He did not observe any injuries to § 87(2)(b)

Det. DiPaola was interviewed at the CCRB on August 18, 2016 (See Board Review #24: Det. DiPaola's Statement). He stated that § 87(2)(b) was restrained after § 87(2)(b) § 87(2)(b) was removed from her care. He did not recall if she handed the child over, or if an officer took him from § 87(2)(b) Det. DiPaola was in the hallway when § 87(2)(b) was restrained, and could not see in to the hotel room. While he heard the sounds of a commotion inside, he did not see what, if any, force was used against § 87(2)(b) at the time. He did not observe any injuries to § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

Since the incident, the NYPD has revised its policies on the use of force. At the time of the incident, the use of force was governed by NYPD Patrol Guide procedure 203-11, which stated that officers may use a limited amount of physical force against an individual in order to overcome his or her resistance while effecting an arrest or taking an emotionally disturbed person into custody (See Board Review #25: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations G and H** be closed as **exonerated**.

Squad: 16

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date